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AS AMENDED

By: Kirt of the Senate

and

West (Josh) of the House

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[ health care providers - mental health screening
instrument - patient visits - rules - codification -
effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 510.2 of Title 59, unless there is created a duplication in numbering, reads as follows:

A. A physician shall provide an evidence-based, validated mental health screening instrument as prescribed by the State Board of Medical Licensure and Supervision to each patient during or before a routine primary care visit at least once annually. This requirement shall not apply to physicians who do not practice direct client care.

B. The Board shall promulgate rules pertaining to the required screening instrument and shall create such information and educational materials necessary to implement the provisions of this

1 section. The Board may collaborate with the State Board of
2 Osteopathic Examiners and the Oklahoma Board of Nursing to develop
3 such rules, information, and educational materials.

4 SECTION 2. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 519.13 of Title 59, unless there
6 is created a duplication in numbering, reads as follows:

7 A. A physician assistant shall provide an evidence-based,
8 validated mental health screening instrument as prescribed by the
9 State Board of Medical Licensure and Supervision to each patient
10 during or before a routine primary care visit at least once
11 annually. This requirement shall not apply to physician assistants
12 who do not practice direct client care.

13 B. The Board shall promulgate rules pertaining to the required
14 screening instrument and shall create such information and
15 educational materials necessary to implement the provisions of this
16 section. The Board may collaborate with the State Board of
17 Osteopathic Examiners and the Oklahoma Board of Nursing to develop
18 such rules, information, and educational materials.

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 567.32 of Title 59, unless there
21 is created a duplication in numbering, reads as follows:

22 A. An Advanced Practice Registered Nurse shall provide an
23 evidence-based, validated mental health screening instrument as
24 prescribed by the Oklahoma Board of Nursing to each patient during

1 or before a routine primary care visit at least once annually. This
2 requirement shall not apply to Advanced Practice Registered Nurses
3 who do not practice direct client care.

4 B. The Board shall promulgate rules pertaining to the required
5 screening instrument and shall create such information and
6 educational materials necessary to implement the provisions of this
7 section. The Board may collaborate with the State Board of Medical
8 Licensure and Supervision and the State Board of Osteopathic
9 Examiners to develop such rules, information, and educational
10 materials.

11 SECTION 4. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 638.2 of Title 59, unless there
13 is created a duplication in numbering, reads as follows:

14 A. An osteopathic physician shall provide an evidence-based,
15 validated mental health screening instrument as prescribed by the
16 State Board of Osteopathic Examiners to each patient during or
17 before a routine primary care visit at least once annually. This
18 requirement shall not apply to osteopathic physicians who do not
19 practice direct client care.

20 B. The Board shall promulgate rules pertaining to the required
21 screening instrument and shall create such information and
22 educational materials necessary to implement the provisions of this
23 section. The Board may collaborate with the State Board of Medical
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1 Licensure and Supervision and the Oklahoma Board of Nursing to
2 develop such rules, information, and educational materials.

3 SECTION 5. This act shall become effective November 1, 2026.

4 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
March 4, 2026 - DO PASS AS AMENDED
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